

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sruthi Venigalla	Team: Squad #13	CCRB Case #: 201403108	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/01/2014 7:25 PM	Location of Incident: § 87(2)(b) and the 79th Precinct stationhouse		18 Mo. SOL 10/1/2015	Precinct: 79	
Date/Time CV Reported Wed, 04/02/2014 8:55 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 04/02/2014 8:55 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Juan Melo	03927	932925	079 PCT
2. SGT David Leonardi	04982	930557	079 PCT
3. An officer			079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Arnold Chow	27983	921211	079 PCT
2. POM Andrew Ho	11741	941907	079 PCT
3. POM Eduardo Cornejo	13722	936390	079 PCT
4. POM Jamaal Miller	18339	939039	079 PCT
5. POM Terrence Howard	10504	950599	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT David Leonardi	Abuse: Sgt. David Leonardi authorized the stop of § 87(2)(b)	A . Substantiated
B . SGT David Leonardi	Abuse: At § 87(2)(b) in Brooklyn, Sgt. David Leonardi refused to provide his shield number to § 87(2)(b)	B . Unsubstantiated
C . SGT David Leonardi	Abuse: Sgt. David Leonardi threatened § 87(2)(b) with the use of force.	C . Unsubstantiated
D . An officer	Abuse: At the 79th Precinct stationhouse, an officer strip-searched § 87(2)(b)	D . Officer(s) Unidentified
E . An officer	Abuse: At the 79th Precinct stationhouse, an officer did not obtain medical treatment for § 87(2)(b)	E . Officer(s) Unidentified
F . SGT David Leonardi	Abuse: Sgt. David Leonardi authorized the issuance of a summons to § 87(2)(b)	F . Substantiated
G . SGT Juan Melo	Abuse: At the 79th Precinct stationhouse, Sgt. Juan Melo did not obtain medical treatment for § 87(2)(b)	G . Unsubstantiated
H . SGT Juan Melo	Abuse: At the 79th Precinct stationhouse, Sgt. Juan Melo did not process § 87(2)(b)'s complaint against officers.	H . Unsubstantiated

Case Summary

On April 1, 2014 at approximately 6:45 p.m., § 87(2)(b) saw his nephew, § 87(2)(b) in the vicinity of a restaurant located at 306 Marcus Garvey Boulevard in Brooklyn. The two exchanged verbal greetings, hugged and spoke for a minute more before parting and walking in opposite directions. § 87(2)(b) continued walking to the restaurant where he spent fifteen minutes ordering food, before walking back towards his residence at § 87(2)(b) in Brooklyn, holding a box of pizza.

At approximately 7:15 p.m., Sgt. David Leonardi and PO Andrew Ho of the 79th Precinct stopped § 87(2)(b) outside of his residence (**Allegation A**) and handcuffed him. In doing so, an officer, identified by the investigation as Sgt. Leonardi, allegedly pushed § 87(2)(b) up onto an adjacent iron fence, such that the middle of his chest pressed into the iron spikes on the top of the fence. § 87(2)(b) asked why he was stopped and Sgt. Leonardi responded, “You just bought some drugs.” § 87(2)(b) said that he also asked only Sgt. Leonardi for his shield number, and Sgt. Leonardi allegedly replied, “Y’all think if you ask for someone’s badge number, we’re just gonna get scared” and did not provide his shield number (**Allegation B**). When the officers placed him in the unmarked vehicle, § 87(2)(b) who sat leaning forward, said “Damn these cuffs are hurting!” to which Sgt. Leonardi allegedly said, “You ain’t feel nothing yet.” In the vehicle, Sgt. Leonardi also allegedly said, “I’m going to break every bone in your face” (**Allegation C**).

During his sworn statement on April 3, 2014, § 87(2)(b) initially said that there were only two officers within the vehicle, but later changed his statement to say, that he sat next to another officer, whom he described as “a Dominican officer.” During their statements at the CCRB on July 3, 2014 and August 19, 2014, PO Ho and Sgt. Leonardi stated that they were the only officers who transported § 87(2)(b) to the stationhouse.

When they arrived at the 79th Precinct stationhouse, § 87(2)(b) stated that an unidentified officer, who § 87(2)(b) described as heavyset black man with a moustache (PO3), escorted § 87(2)(b) into a holding cell and asked him to remove his pants, shoes and socks. § 87(2)(b) alleged that PO3 asked him to bend over and hold his buttocks apart while PO3 scanned him with a flashlight (**Allegation D**). § 87(2)(b) stated that § 87(2)(b) because of the pain he sustained to his chest as a result of the stop, he asked to go to a hospital two times, while he was in the stationhouse, in front of PO3, as well as, to “Chow” and the “desk sergeant”, identified by the investigation as PO Arnold Chow and Sgt. Juan Melo, respectively (**Allegation E and F**).

§ 87(2)(b) was issued a summons for disorderly conduct by PO Ho (**Allegation G**). § 87(2)(b) also stated his intent to file a “civil complaint” to the desk sergeant who asked PO Chow to provide him with the number for the CCRB (**Allegation H**), before PO3 escorted him out of the stationhouse. Outside the stationhouse, § 87(2)(b) told PO3 that he needed an ambulance. According to § 87(2)(b) PO3 did not respond to this request and instead, stepped back into the stationhouse (**within Allegation F**). § 87(2)(b) did not receive any injuries, but stated that he used an ice pack at home for his chest.

Mediation, Civil and Criminal Histories

- This case is not eligible for mediation because of § 87(2)(b)'s arrest and the allegation of a strip search.
- As of May 20, 2015, § 87(2)(b) has not filed a notice of claim with the City of New York in regards to this incident, which is ten months after the filing deadline (Encl. F6).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[redacted]
[redacted]
[redacted]
- [redacted]
[redacted].

Civilian and Officer CCRB Histories

- [§ 87(2)(b)] has filed two previous complaints with the CCRB. [§ 87(2)(b)]
[redacted]
[redacted]
[redacted]
[redacted]
- Sgt. David Leonardi has been a member of the NYPD for twelve years. He has had 54 other allegations involving 22 cases. Of the 54 allegations, eight allegations were for frisk or search of person and eight allegations were for strip-searches. [§ 87(2)(g)]
[redacted]
 - In CCRB case number 200410123, an allegation of property damage was substantiated, for which the NYPD issued him a command discipline.
 - In CCRB case number 201107817, allegations of a stop, frisk and search were substantiated, for which the NYPD issued him instructions.
 - In CCRB case number 201310961, allegations of refusal to process civilian complaint and a frisk were substantiated, for which the NYPD issued him a command discipline.
 - In CCRB case number 201409828, allegations of a strip search was substantiated, for which he received charges.
- Sgt. Juan Melo has been a member of the NYPD for 11 years, and has had four other allegations involving three cases, none of which have been substantiated (Encl. 2J).

Potential Issues

- During his sworn statement at the CCRB on April 3, 2014 (Encl. C6 – C12), [§ 87(2)(b)] initially said that there were only two officers within the vehicle, but later changed his statement to say, that he sat next to another officer, whom he described as “a Dominican officer.” During their statements at the CCRB on July 3, 2014 and August 19, 2014, PO Ho and Sgt. Leonardi stated that they were the only occupants of their vehicle.
- According to [§ 87(2)(b)] an officer, who remains unidentified, conducted a strip search on him while he was in a holding cell, and did not provide medical attention to [§ 87(2)(b)] upon his request for it.

NYPD Documents

- A request for the 79th Precinct Prisoner Holding Pen Roster on April 1, 2014 was unable to be fulfilled. According to this command, the document is unavailable (Encl. F7).
- The 79th Precinct command log lists PO Eduardo Cornejo as [§ 87(2)(b)]'s arresting officer. [§ 87(2)(b)] was brought to the 79th Precinct stationhouse at 7:20 p.m and released at 8:00 p.m. The entry does not document a strip-search (Encl. E1).

- The 79th Precinct roll call for Tour 3 indicates that Sgt. Leonardi, PO Cornejo, PO Miller, PO Ho and PO Howard were assigned to the Strategic Enforcement Team (SET). PO Ho, PO Miller and Sgt. Leonardi were assigned to RMP 854, while PO Cornejo and PO Howard were assigned to RMP 643 (Encl. E2 – E16).
- PO Ho issued summons § 87(2)(b) for disorderly conduct. This summons does not specify a subsection (Encl. D3).

Recommendations

Explanation of Officer Identification

- § 87(2)(b) stated that he was stopped by two officers in plainclothes, one of whom he described as a heavyset white man, and the other he described as a Hispanic man. § 87(2)(b) was issued a summons for § 87(2)(b) by PO Ho. The 79th Precinct roll call for Tour 3 on April 1, 2014 indicates that PO Ho was working with Sgt. Leonardi, both of whom admitted to stopping § 87(2)(b) after communication with PO Eduardo Cornejo who was assigned to the observation post for the 79th Precinct Strategic Enforcement Team (SET) on the day of the incident. PO Cornejo stated that he was not in the vicinity of Monroe Street and Marcus Garvey Boulevard at the time of the incident. PO Cornejo's memo book entries indicate that following an arrest at approximately 6:50 p.m., he returned to the 79th Precinct stationhouse at 7:00 p.m. § 87(2)(g)
 § 87(2)(g)
 § 87(2)(g)
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 § 87(2)(g)
 § 87(2)(g)
- When they arrived at the 79th Precinct stationhouse, § 87(2)(b) stated that an unidentified officer (PO3), escorted § 87(2)(b) into a holding cell and asked him to remove his pants, shoes and socks. § 87(2)(b) alleged that PO3 asked him to bend over and hold his buttocks apart while PO3 scanned him with a flashlight. During his sworn statement, § 87(2)(b) described PO3 as a heavyset black man with textured hair and a moustache. § 87(2)(b) stated that this officer did not provide medical attention upon his request for it, in the stationhouse, and again outside the stationhouse. § 87(2)(b) appeared at the CCRB again on April 7, 2015 and viewed a photo array which included all black or Hispanic officers who were assigned to the SET team: PO Terrence Howard, PO Jamaal Miller and PO Cornejo. The photo array also included PO Anthony Ward, who was assigned as a cell attendant according to the roll call. During the photo array viewing, § 87(2)(b) stated that the officer who strip-searched him was a white man. § 87(2)(g)
 § 87(2)(g)
- § 87(2)(b) stated that § 87(2)(b) because of the pain he sustained to his chest as a result of the stop, he asked to go to a hospital two times, while he was in the stationhouse, in front of "Chow" and the "desk sergeant", identified by the investigation as PO Arnold Chow, who was assigned to the telephone switchboard, and Sgt. Juan Melo, respectively. As desk sergeant, Sgt. Melo was responsible for processing civilian complaints and obtaining medical attention for civilians at the stationhouse. § 87(2)(g)
 § 87(2)(g)

Recommendations

Allegations not Pleaded

§ 87(2)(g)

Allegation A – Abuse of Authority: Sgt. David Leonardi authorized the stop of § 87(2)(b)

§ 87(2)(b) stated that he and his nephew, § 87(2)(b) exchanged verbal greetings, hugged, and spoke for a minute more in the vicinity of 306 Marcus Garvey Boulevard in Brooklyn before parting and walking in opposite directions. Approximately thirty minutes later, outside of his residence at § 87(2)(b) in Brooklyn, § 87(2)(b) who was holding a box of pizza, stated that he observed an unmarked dirty green Ford driving towards him, against traffic. Two officers in plainclothes stepped out of the vehicle. An officer, whom he described as a heavyset white man with brown hair and a beard, identified by the investigation as Sgt. Leonardi, handcuffed him.

Sgt. Leonardi and PO Ho provided corroborating testimony in that they communicated via point-to-point radio with PO Cornejo who was assigned to the observation post for the SET team, regarding § 87(2)(b) who appeared to have engaged in a hand to hand transaction. PO Ho could not recall the description that PO Cornejo provided but stated that that it was an accurate description of § 87(2)(b) because he was also able to see § 87(2)(b) from approximately fifteen feet away on Monroe Street in Brooklyn. Sgt. Leonardi stated that PO Cornejo described an individual, identified by the investigation as § 87(2)(b) by his pedigree, his clothing and his direction of flight.

Sgt. Leonardi and PO Ho continued driving onto Monroe Street, exited their vehicle, and approached § 87(2)(b) PO Ho stated that § 87(2)(b) placed his hand to his mouth as though he ate whatever was exchanged in the previous observed hand to hand transaction, a statement that Sgt. Leonardi did not corroborate. However, Sgt. Leonardi stated that he asked him to stop with the intent of finding out if § 87(2)(b) purchased narcotics and to recover them.

PO Cornejo stated that he was assigned to an observation post with PO Howard at Tompkins Avenue and Gates Avenue in Brooklyn, and that he could not recall being in the vicinity of § 87(2)(b). He did not recognize a photograph of § 87(2)(b) and his memo book entries indicate that following arrests at approximately 6:15 p.m. and 6:50 p.m., he returned to the 79th Precinct stationhouse at 7:00 p.m.

§ 87(2)(g)

A seizure of person is defined as a significant interruption of an individual's liberty of movement. An officer may stop a person only if he reasonably suspects that the person is committing, has committed, or is about to commit a crime. People v. DeBour, 40 N.Y.2d 210 (1976) (Encl. 1A – 1K). Innocuous behavior, even in a high crime area, does not provide reasonable suspicion. People v. Hampton, 200 A.D.2d 466 (1st Dept. 1994) (Encl. 1L – 1N).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **substantiated**.

Allegation B – Abuse of Authority: At 496A Monroe Street in Brooklyn, Sgt. David Leonardi refused to provide his shield number to § 87(2)(b)

Allegation C – Abuse of Authority: Sgt. David Leonardi threatened § 87(2)(b) with the use of force.

§ 87(2)(b) then asked Sgt. Leonardi for his shield number, to which Sgt. Leonardi replied, “Y’all think if you ask for someone’s badge number, we’re just gonna get scared.” When § 87(2)(b) was placed in the unmarked vehicle, § 87(2)(b) said, “Damn these cuffs are hurting!” to which Sgt. Leonardi allegedly said, “You ain’t feel nothing yet” and “I’m going to break every bone in your face.”

§ 87(2)(b) initially said that there were only two officers within the vehicle, but later changed his statement to say, that he sat next to another officer, whom he described as “a Dominican officer.” PO Ho and Sgt. Leonardi stated that they were the only officers in their vehicle, and both denied hearing and making the alleged statements. The 79th Precinct roll call for Tour 3 on April 1, 2014 indicates that PO Andrew Dumelle and PO Jamaal Miller were assigned to the same vehicle as Sgt. Leonardi and PO Ho. While PO Dumelle is a white man, PO Miller’s testimony and memo book entries reflect a court appearance at the beginning of his tour. PO Miller who did not recognize § 87(2)(b) when shown a photograph of § 87(2)(b) stated that he did not witness officers stop § 87(2)(b). Sgt. Leonardi and PO Ho were consistent in their statements that at the time of his arrest, § 87(2)(b) became irate and screamed obscenities at the officers, causing a crowd to gather. Neither officer recalled § 87(2)(b) asking them for their names and shield numbers. Sgt. Leonardi, who denied pushing § 87(2)(b) up against a fence, or twisting his arms to handcuff him, stated that § 87(2)(b) did not complain of any pain to his chest or wrist as a result of his arrest, a statement that PO Ho corroborated.

§ 87(2)(g)

Therefore, it is recommended that **Allegations B and C** be **unsubstantiated**.

Allegation D – Abuse of Authority: At the 79th Precinct stationhouse, an officer strip-searched § 87(2)(b)

Allegation E - Abuse of Authority: At the 79th Precinct stationhouse, an officer did not obtain medical treatment for § 87(2)(b)

When they arrived at the 79th Precinct stationhouse, § 87(2)(b) stated that an officer (PO3), escorted § 87(2)(b) into a holding cell and asked him to remove his pants, shoes and socks. § 87(2)(b) alleged that PO3 asked him to bend over and hold his buttocks apart while PO3 scanned him with a flashlight. According to § 87(2)(b) another officer was present for the alleged strip-search, however § 87(2)(b) was unable to describe him. § 87(2)(b) stated that this officer did not provide medical attention upon his request for it, in the stationhouse, and again outside the stationhouse.

During his sworn statement, § 87(2)(b) described PO3 as a heavyset black man with textured hair and a moustache. Of the six officers assigned to the 79th Precinct SET team on April 1, 2014, three officers, PO Eduardo Cornejo, PO Jamaal Miller and PO Terrence Howard are black men. While PO Miller matches § 87(2)(b)'s description as being heavyset, he has no facial hair. While both PO Cornejo and PO Howard have moustaches, neither are heavyset. § 87(2)(b) appeared at the CCRB again on April 7, 2015 and viewed a photo array which included all black or Hispanic officers who were assigned to the SET team: PO Terrence Howard, PO Jamaal Miller and PO Cornejo. The photo array also included PO Anthony Ward, was assigned as a cell attendant according to the roll call. During the photo array viewing, § 87(2)(b) stated that the officer who strip-searched him was a white man.

No strip-search was noted on § 87(2)(b)'s command log entry and a request for the 79th Precinct Prisoner Holding Pen Roster on April 1, 2015 was unable to be fulfilled because the document is unavailable. PO Ho denied that a strip-search occurred at the stationhouse, and no other officer interviewed, including Sgt. Leonardi, recalled a strip-search occurring at the stationhouse, or if § 87(2)(b) requested medical attention.

§ 87(2)(g) it is recommended that **Allegation E** be closed as **unfounded**.

Allegation F – Abuse of Authority: Sgt. David Leonardi authorized the issuance of a summons to § 87(2)(b)

PO Ho issued § 87(2)(b) Summons § 87(2)(b) for disorderly conduct, on which the subsection was crossed out. According to Sgt. Leonardi, § 87(2)(b) became irate immediately and stated, “You can’t touch me, you can’t fucking do this, this is fucking against the law,” causing a “large group” of people to gather around. PO Ho recalled that § 87(2)(b) began shouting obscenities at the officers, causing a crowd of approximately fifty people to gather. They stated that for § 87(2)(b)'s safety and that of the officers’, either PO Ho or Sgt. Leonardi handcuffed him with the intent of transporting him back to the stationhouse to be issued a summons.

The mere expression, even if uttered in a loud voice, that one feels aggrieved by officers does not constitute an offense of disorderly conduct, People v. Square, 20 Misc. 3d 1126 (A) (Crim. Ct. New York County 2008) (Encl. 1P – 1X). A valid disorderly conduct charge requires evidence of actual or threatened public harm, and isolated statements using coarse language to criticize an officer’s actions without provocative acts or other aggravating circumstances will rarely afford a sufficient basis to infer the presence of public harm necessary to support a disorderly conduct charge. People v. Baker, 20 N.Y.3d 354 (2013) (Encl. 2A – 2E).

§ 87(2)(g) it is recommended that **Allegation H** be **substantiated**.

Allegation G - Abuse of Authority: At the 79th Precinct stationhouse, Sgt. Juan Melo did not obtain medical treatment for § 87(2)(b)

Allegation H - Abuse of Authority: At the 79th Precinct stationhouse, Sgt. Juan Melo did not process § 87(2)(b)'s complaint against officers.

§ 87(2)(b) stated that at the precinct stationhouse, he asked to go to a hospital two times in front of PO3, as well as, “Chow” and the “desk sergeant”, identified by the investigation as PO Chow and Sgt. Melo, respectively. § 87(2)(b) also stated his intent to file a “civil

complaint” to the desk sergeant who asked PO Chow to provide him with the number for the CCRB, before PO3 escorted him out of the stationhouse. Outside the stationhouse, § 87(2)(b) told PO3 that he needed an ambulance. According to § 87(2)(b) PO3 did not respond to this request and instead, stepped back into the stationhouse.

Neither Sgt. Melo nor PO Chow recognized a photograph of § 87(2)(b) or the command log entry for his arrest. They could not recall any arrests made by Sgt. Leonardi on the incident date, nor could they recall any civilian requesting medical attention. PO Cornejo, who returned to the stationhouse at approximately 7:00 p.m., did not recognize a photograph of § 87(2)(b) or a summons that was issued to him. The undersigned investigator also presented PO Cornejo with a command log entry listing him as the arresting officer for § 87(2)(b) PO Cornejo, who denied making or processing the arrest, stated that only supervising sergeants made entries in the command log, and that this particular entry must have been made in error. At the stationhouse, PO Cornejo could not recall any civilians discussing injuries and requesting medical attention.

§ 87(2)(g)

Therefore, it is recommended that **Allegations F and G** be closed as **unsubstantiated**.

Team: _____

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date